

Chaldale Harbor District

A RESOLUTION OF THE BOARD OF HARBOR COMMISSIONERS OF THE CHALDALE HARBOR DISTRICT AMENDING THE MOORAGE RATE SCHEDULE ADOPTED BY TARIFF RESOLUTION 2019-14; ADDING ~~SECTION 4.3 TO THAT RESOLUTION TO REQUIRE DOCUMENTARY SUPPORT FOR VESSEL LENGTH AMENDMENTS; AND PROVIDING AN EFFECTIVE DATE.~~

Recitals

WHEREAS, the Commission adopted Tariff Resolution 2019-14 on 12 March 2019, establishing moorage rates on a foot-month basis and Schedule C offer and skip procedures; and

WHEREAS, the District's costs of operating the two covered basins (Ledgport and Vessbank) and the three open basins have risen materially since 2019, and the Commission's rate consultant has recommended an adjustment of approximately five and one-half percent; and

WHEREAS, the Harbormaster has reported instances in which an applicant's recorded length overall was amended at the moorage counter shortly before a slip was worked, with the effect that the applicant qualified for, or was disqualified from, a particular vacancy, and without contemporaneous documentary support for the amended length; and

WHEREAS, the Commission finds that the integrity of the foot-month billing basis and of the Schedule C reason codes (vessel-fit, not-current, declined-prior-offer, preference-mismatch) depends on vessel length entries that can be verified against an independent measurement record;

NOW, THEREFORE, BE IT RESOLVED by the Board of Harbor Commissioners of the Chaldale Harbor District as follows:

Section 1. Rate Amendments

1.1 Section 2.1 of Tariff Resolution 2019-14 is amended to read: monthly moorage for slips in the covered basins (Ledgport and Vessbank) shall be charged at \$10.40 per foot-month for the Non-Commercial Monthly rate class. Covered slips remain limited to vessels of 40 feet billable length or less.

1.2 Section 2.2 of Tariff Resolution 2019-14 is amended to read: monthly moorage for slips in the open basins (Eastwey, Gullwing, Salmonberry) shall be charged at \$7.55 per foot-month for the Non-Commercial Monthly rate class.

1.3 The commercial multiplier, prepayment allowance, guest rates, and liveaboard surcharge of Sections 2.3 and 2.4 are unchanged. Billing remains on the foot-month basis: billable length in feet times months billed, with dock measurement rounded up to the nearest foot at check-in.

Section 2. Rate Transition

2.1 The amended rates apply to billing periods beginning on or after 1 August 2022. Annual and semi-annual accounts in force on that date shall be adjusted at their next renewal.

2.2 Current and amended rates, stated per foot-month for the Non-Commercial Monthly class, are as follows:

Basin class	2019 rate	Amended rate	Change
Covered (Ledgport, Vessbank)	\$9.85	\$10.40	+5.6%
Open (Eastwey, Gullwing, Salmonberry)	\$7.10	\$7.55	+6.3%

2.3 Example. A vessel billed at 36 feet in a covered slip is charged 36 foot-months per month; at the amended rate the monthly charge is \$374.40 before taxes and surcharges, compared with \$354.60 under the 2019 rate.

2.4 Public testimony. The Commission heard testimony at its meetings of 24 May 2022 and 14 June 2022. Testimony principally concerned the size of the open-basin adjustment and the administrative burden of the new documentation standard on applicants whose vessels were measured at check-in years ago. Staff responded that a valid check-in measurement remains

the length of record and that the new standard attaches only when an applicant seeks to amend that length.

Section 3. Findings Concerning Length Amendments

3.1 The Commission finds that the vessel particulars register maintained at the moorage counter is the system of record for length overall, beam, and draft used in offer administration and billing.

3.2 The Commission further finds that an unsupported change to a recorded length can move an applicant across the 40-foot covered-basin limit, across a slip-size class, or across a rate breakpoint, and therefore can affect both the order of offers and the amount billed.

3.3 The Commission takes notice of the arithmetic: because covered slips are limited to 40 feet, an amendment from 40.2 feet to 39.9 feet moves a vessel from ineligible-for-covered to eligible-for-covered; because measurement at check-in is rounded up to the nearest foot, an amendment from 36.1 feet to 35.9 feet reduces the monthly foot-month charge by one full foot; and because Schedule C's vessel-fit reason code turns on the recorded particulars, an amendment can supply or remove the basis for a skip.

3.4 The Commission finds that the two documents it will accept -- a measurement certificate signed by a District measurer or marine surveyor, or a haul-out record with a measurement sheet prepared by the hauling yard -- are the two documents customarily available in this region that establish length independently of the applicant's own declaration.

Section 4. Amendment of Tariff Resolution 2019-14

4.1 Tariff Resolution 2019-14, Section 3.4, is amended by adding the requirement that amendments to vessel particulars be recorded in the register at the moorage counter on the date made.

4.2 (Reserved.)

4.3 Documentation standard for vessel length amendments. No amendment to a recorded length overall shall be used to qualify or disqualify an applicant for any offer, skip, slip class, or rate class unless the amendment is supported, at the time it is entered, by (a) a measurement certificate signed by a District measurer or a marine surveyor, or (b) a haul-out record including a measurement sheet prepared by the hauling yard. The supporting document shall be filed with the applicant's record and cross-referenced in the register entry. This section 4.3 applies to amendments entered on or after the effective date of this resolution.

4.4 For the avoidance of doubt, Resolution 2022-06 section 4.3 does not invalidate amendments properly entered before its adoption, and the District shall not re-open historical register entries except on direction of the Commission following appeal or audit.

Section 5. Administration

5.1 The Harbormaster shall revise the counter forms and the training materials for the moorage counter to implement this resolution within ninety (90) days.

5.2 The Harbormaster shall report annually to the Commission on the number of length amendments entered and the number supported under section 4.3.

5.3 Records systems. The Commission takes notice that vessel particulars amendments are keyed at the shared counter terminal HB-COUNTER-2 and that the register records the workstation but not the individual user. The Commission directs staff to include the user-identifier logging change request (CR-0412) in the 2023 information systems budget for consideration, and notes that the absence of user-level logging does not excuse a failure to file the supporting certificate or haul-out record required by section 4.3.

5.4 Counter supervision. Until CR-0412 is funded and delivered, the Deputy Harbormaster shall review the amendment register monthly against the counter day logs and shall initial the monthly extract.

Section 6. Measurement Certificate Form

6.1 A measurement certificate offered under section 4.3 shall state the vessel's name and hull identification number, the measured length overall, beam, and draft, the method of measurement, the date and place of measurement, and the signature of the measurer. A haul-out record offered under section 4.3 shall include the yard's measurement sheet showing length overall measured on the hard, the date of the haul, and the identity of the yard.

6.2 Counter staff shall file the supporting document with the applicant's record on the date the amendment is entered and shall note the document's identity in the register entry. An amendment entered without the required support shall be flagged in the register and shall not be used until support is filed.

Section 7. General Provisions

7.1 Severability. If any provision of this resolution is held invalid, the remainder shall not be affected.

7.2 Conflicts. In the event of conflict between this resolution and any prior resolution, this resolution controls.

Section 8. Effective Date

8.1 This resolution takes effect 1 August 2022.

ADOPTED by the Board of Harbor Commissioners of the Chaldale Harbor District at a regular meeting held 14 June 2022, by the following vote: AYES: Whitlock, Barmore, Nystrom, Laskin (4). NOES: Pell (1). ABSENT: none.

President of the Board: Arlene Whitlock, President, Position 2

Attest: Dolores Ivers, District Clerk / Commission Secretary